

WRITTEN SUBMISSIONS · 16 APR 1999

Brief — McDonald's

TYPE	DATE	PARTIES
Pleadings / procedural document	16 Apr 1999	From McDonald's France

SUMMARY SHEET

Brief to the experts — McDonald's France · 16 April 1999

Overview: brief sent by McDonald's France (Leloup law firm, Maître Jean-Marie Leloup) to the experts Jean-Luc Dumont and Alain Martin, appointed by the judgment of the Paris Court of Appeal of 9 December 1998, supplementing the documents handed over on 23 February 1999 and in response to the appellants' statement (dire).

Key points

McDonald's answers the Court's first question, namely whether a reduction in Mr Collorafi's salary and keeping the dividends in the current account would have made it possible to reach break-even point. The brief puts forward figures:

- Mr Collorafi's gross remuneration in SEBOL: 625,000 F in 1995, raised to 710,400 F in 1997 (+14%);
- dividends received: 1,850,000 F in 1995 and 1,000,000 F in 1996, in addition to 400,000 F (1993) and 900,000 F (1994);
- total received and retained at the end of 1996 estimated at 3,800,000 F.

McDonald's infers from this that Mr Collorafi did not behave as a responsible business owner, taking the profits for himself without reinvesting sufficiently. Operating tables (sales, PAC, fees) for Antibes Nord, Ouest and the Antibes total are attached (documents E1 and E2).

Significance

A document from the expert assessment phase: it carries the franchisor's counter-arguments, attributing the difficulties to the franchisee's management rather than to its own strategy.

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Source: bernardcollorafi.org/en/documents/brief-mcdonalds-experts-profitability-collorafi-1999/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original scan is authoritative.